Why were these basic safeguards systematically violated? For an answer, it is worth discussing the ‘probabilities’ which the court found ‘plausible and persuasive’; they lead us far beyond the restricted legal window through which the court looked at the Parliament attack case. For brevity, we will discuss just the issue of the timing of the confession.[9]

The confessions were recorded on 21 December 2001, after POTO was introduced in the case on 19 December. As noted, Afzal and Shaukat allegedly made disclosure statements immediately after their arrest on 15 December 2001. Displaying incredible loquacity, both Afzal and Shaukat had apparently poured out everything they knew about the conspiracy. Following these alleged disclosures, the police had already gathered most of the so-called facts of the case before 19 December. The confessions themselves did not contain anything that was not already available to the police on independent investigation based on the earlier disclosures. Why then were the confessions, allowed by POTO, needed?

More importantly, the judgement states, ‘There was no perceptible reason why the accused should not have been produced before a judicial magistrate for recording a confession under the provision of CrPC.’[10] According to the court, the defence held that the accused were ‘not prepared to make the confession in a court and, therefore, the investigating authorities found the ingenuity of adding POTA offences at that stage so as to get the confession recorded by a police officer according to the wishes of the investigators’. As noted, the court found this argument ‘plausible and persuasive’.

Until alternative explanations are offered, the following picture emerges: The government wanted to use the ‘window of opportunity’ offered by the attack on the Parliament to go to war against Pakistan. After the investigations were virtually over within days after the attack, there was no evidence to link the attack with Pakistan-sponsored terrorism. Hence, POTO was belatedly introduced on 19 December; soon after, the government mobilized its troops. Afzal was made to confess before the media on the 20 December so as to lend credibility to the official confession to follow on 21 December. The eminent lawyer Shanti Bhusan suggested that ‘the police failed to crack the case’ as ‘all the five militants died in the attack’. So, as an article in *Tehelka* (16 October 2004)[11] stated, the police ‘framed people’ in order ‘to create a conspiracy case’ for the government to take the country ‘to the brink of a nuclear war’.